

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 07/15/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Guzman-Trust</u> 30-2024-01375970	MOTION TO NUNC PRO TUNC; MOTION TO EXPUNGE LIS PENDENS; MOTION FOR ORDERS Respondent Ralph Guzman’s Motion for Nunc Pro Tunc Order (ROA 179) is DENIED. Petitioner Manuel Guzman’s Motion for Orders (ROA 117) is GRANTED in part and DENIED in part. Respondent Ralph Guzman’s Motion to Expunge Lis Pendens (ROA 195) is DENIED. I. Nature of the Proceeding and Brief Relevant Procedural History This action arises out of and relates to the Manuel G. Guzman Sr. Revocable Trust dated June 17, 2016, as amended (“Trust”). According to the petition (ROA 2) filed by Manuel A. Guzman (“Manuel”) and Andrea K. Guzman (“Andrea”), the primary and possibly only asset of the trust is real property located at 15841 Topaz St., Westminster, CA 92683 (“Property”). More than one individual involved in this case share a surname. For clarity, the court is using first names without intending any disrespect. (<i>Morgan v. Superior Court</i> (2018) 23 Cal. App. 5th 1026. fn.1) By its terms, the Trust directed that, at the settlor’s death, the Property would be distributed to Respondent Ralph Guzman (“Ralph”) upon a condition that he takes a loan out against the Property and withdraw the sum of \$250,000 for the purpose of making cash gifts in the following amounts to the following persons: (1) \$100,000 to Manuel, (2) \$50,000 to Regina A. Guzman, (3) \$50,000 to Andrea, and (4) \$50,000 to Renee Lynette Guzman. The settlor died on October 7, 2022, and Ralph became trustee. The petition alleges Ralph transferred the Property to himself but failed to give the beneficiaries notice of the Trust or take any other step to administer the Trust. Accordingly, on January 30, 2024, Manuel and Andrea filed a petition praying for orders: (1) compelling Ralph to provide the beneficiaries with a copy of the Trust; (2) determining the Property is held in constructive trust for the benefit of the Trust; (3) removing or suspending Ralph as trustee; (4) appointing Manuel successor trustee; (5) compelling Ralph to cooperate in obtaining a loan against the Property to satisfy the cash gifts or, alternatively, allowing Manuel to sell the Property to satisfy the cash gifts; (6) awarding damages; and (7) awarding costs and fees. (ROA 2.) The petition, as supplemented, was approved on May 28, 2025, as to requests 1-5: “The court is going to approve this matter as supplemented as to prayer request 1 through 5. As to prayer request 6 and 7, the court is going to reserve

on that issue subject to any proof that's going to be filed by any counsel." (ROA 189, Exhibit 5 at 4:6-10; ROA 72 ["Petition – Other (ROA 2) is approved as supplemented as to prayers 1-5 only, court reserves as to prayers 6-7"].)

At a hearing on September 17, 2025, the court inquired about whether Ralph had obtained the required loan. Ralph's counsel was unable to provide any information. Petitioners' counsel similarly had no information on the loan but asked the court to appoint an elisor to transfer the Property from Ralph to the Trust. The court instructed Petitioners' counsel to file a motion requesting an elisor if he wished and continued the hearing to allow the motion to be filed. Petitioner's counsel then asked the court for an order requiring Ralph to transfer the Property back to the Trust:

Petitioners' Counsel: "One last item, if I may, would the court be inclined today to order [Ralph] to execute a deed transferring the property back to the Trust by a date certain, perhaps in the next two to four weeks? I would be happy to prepare the deed and send it to counsel."

The Court: "He's already been ordered to do that in the past and he's not done it; am I correct?"

Petitioners' Counsel: "That is correct – Well, that's correct, but he's not been ordered to do it by any date certain."

The Court: "I'm going to order him again to do it, and I'm going to order him to get it done no later than October 3rd, October 3rd. [¶] And you can go ahead and submit the proposed order so indicating."

(ROA 189, Exhibit 8 at 5:14-5:3.)

Ralph's counsel did not participate in the foregoing colloquy.

The court's Minute Order does not reference the order to transfer the property but states that Ralph must obtain a loan against the Property by October 3, 2025. (ROA 103.) On October 22, 2025, however, the court signed the order submitted by Petitioners' Counsel requiring, in part, that Ralph transfer the Property to the Trust by October 3, 2025. (ROA 109.)

On December 10, 2025, Petitioners filed a "Motion for Orders" seeking, among other things, the appointment of elisor to transfer the Property to the Trust. (ROA 117.) The motion was heard on February 25, 2026. At the hearing, Ralph represented to the court that the loan on the Property would shortly close. Accordingly, the court continued the motion and ordered the parties to file a joint statement updating the court on the status of the loan and any distributions of cash to the beneficiaries before the continued hearing on March 25, 2026. (ROA 162.) On February 27, 2026, Petitioners filed a Notice of Pendency of Action (lis pendens) on the Property.

On March 10, 2025, Ralph filed a motion seeking to "correct" the October 22, 2025, order to remove the order requiring Ralph to transfer the Property by October 3, 2025. (ROA 179.)

On March 16, 2026, Ralph filed an *ex parte* application to expunge the lis pendens on the Property. (ROA 195.)

On March 17, 2026, the *ex parte* application to expunge the lis pendens was deemed a motion and set for hearing, along with the motion for orders. (ROA 206.) On April 22, 2025, those motions were set for hearing, along with the motion to *nunc pro tunc* the October 17, 2025, order. Those three motions now come before the court for determination.

II. Motion for Nunc Pro Tunc Order (ROA 179)

Pursuant to Code of Civil Procedure section 473(d), Ralph Guzman (Ralph) asks this court to set aside and vacate the court’s October 22, 2025, order on the ground it “contains clerical errors and does not conform to the judicial decision actually made.” (Motion at 1:28-2:2.) The motion is also made pursuant to Code of Civil Procedure section 473(b) on the grounds of surprise and inadvertence asserting that Ralph’s counsel failed in his obligations to his client, specifically that he failed to correct the record at the September 17, 2025, leading to an order based on the court’s misunderstanding.

The motion is based on the premise that Petitioners’ counsel representation to the court that it had previously ordered that Ralph transfer the Property to the Trust was false. The motion fails for two reasons. First, the court’s prior order anticipated and impliedly required a transfer of the Property should Ralph not obtain the required loan. Second, even if the representation had been false, the court’s order was not an error correctable under the statutes cited in the motion.

Ralph argues the order requiring him to transfer the Property was a clerical error and asks that the order be corrected under Code of Civil Procedure section 473(d). A clerical error is something that is entered inadvertently. (*Tokio Marine & Fire Ins. Corp. v. Western Pacific Roofing Corp.* (1999) 75 Cal. App. 4th 110, 117.) “If the court misconstrued the evidence before it, or misapplied the law applicable to the facts disclosed by the evidence, *or was even misled by counsel*, such an error was in no sense a clerical error.” (*Tokio Marine & Fire Ins. Corp.*, *supra*, 75 Cal. App. 4th at 118, emphasis added.)

The court’s October 22, 2025, order was not a clerical error. On May 28, 2025, the court approved the petition as to prayer requests 1-5. Prayer request #5 sought an order: “[c]ompelling Respondent RALPH D. GUZMAN to cooperate in obtaining a loan against the real property located at 15841 Topaz St., Westminster, CA 92683, APN: 107-682-05, in the amount of \$250,000 to satisfy the specific cash gifts, *or in the alternative*, allowing Petitioner MANUEL GUZMAN to sell said real property to satisfy the specific cash gifts.” (Emphasis added.) The requested relief, which was granted by the court, presented two options—either Ralph gets a loan in the amount of \$250,000 or Manuel can sell the Property.

Because Ralph transferred title of the Property into his own name when he became Trustee, Manuel, as successor trustee, cannot sell the Property until title is returned to him as trustee of the Trust. The court’s order allows Manuel to sell the Property as an alternative form of relief. Accordingly, even though the May 28, 2025, order did not explicitly state that Ralph would be required to transfer the title if he did not obtain the loan, the transfer requirement was implicit in that ruling. During the September 25, 2025, hearing and subsequent October 22, 2025, order, the court simply made the implicit requirement an explicit order. Accordingly, based on the entirety of the record the court finds that there was **no** clerical error.

Ralph also seeks to alter the October 22, 2025, order under Code of Civil Procedure section 473(b), which permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” (See *Leader*, 89 Cal. App. 4th at 615-616.) As set forth above, the order requiring Ralph to transfer the Property was not the result of Ralph’s counsel’s mistake, inadvertence, or general neglect.

Because the order was neither a clerical error nor the result of “mistake, inadvertence, surprise or excusable neglect,” Ralph’s motion for *nunc pro tunc* order is **DENIED**.

III. Motion for Orders (ROA 117)

Manuel’s Motion for Orders seeks orders: (1) appointing a court officer as elisor; (2) directing the elisor to execute a Grant Deed transferring the Property to the Trust; and (3) awarding attorney fees.

Based on the entirety of the record and the applicable legal principles, the request for an order appointing an elisor and directing that elisor to execute a grant deed is **GRANTED**.

The court hereby **APPOINTS** the Clerk of the Court, or the Clerk’s designee, to execute a grant deed transferring the property located at 15841 Topaz St., Westminster, California 92683 from Ralph Guzman to Manuel Guzman as trustee of the Manuel G. Guzman Sr. Revocable Trust Dated June 17, 2016. (See *Blueberry Properties, LLC v. Chow* (2014) 230 Cal. App. 4th 1017, 1020-1021.)

The request for an award of attorney fees is **DENIED** without prejudice. The request, which is made under Probate Code section 15864 rather than by a petition for fees pursuant to Probate Code section 17200(b)(9), fails to provide the amount of fees requested. Further, it does not offer sufficient evidence to support the request.

IV. Motion to Expunge Lis Pendens (ROA 195)

A lis pendens will be expunged if: (1) the pleading on which the *lis pendens* is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of the real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) The party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (*Newell v. Superior Court* (2024) 107 Cal. App. 5th 728; Code of Civ. Proc., § 405.30.)

Real property claim. It is well-settled that a “real property claim” is one which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement

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